



Shirley Community Ambulance



**By-Laws
2017**

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January 1, 2017**

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The Shirley Community Ambulance Corporation By-Laws were voted on, and approved by the membership at the regular monthly membership meeting on Thursday December 8, 2016. These by-laws shall take effect on January 1, 2017 at 0000hrs.

We certify that this confirmation is hereby made part of the Master Copy of said By-laws. This document replaces any and all of the previous versions of the By-Laws.

Steve Sherlock, Chief
Shirley Community Ambulance

Date: _____

Marc Mapert, Secretary
Shirley Community Ambulance

Date: _____

John N. O'Brien, By-Law Committee
Shirley Community Ambulance

Date: _____

Kristen Tortorce, By-Law Committee
Shirley Community Ambulance

Date: _____

Aleysa Vives, By-Law Committee
Shirley Community Ambulance

Date: _____

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Article I

Corporation

A. Name

The name of this society shall be Shirley Community Ambulance Corporation, a not-for-profit corporation, having its principal offices in Shirley, Town of Brookhaven, and County of Suffolk in the State of New York 11967 (herein after referred to as the Corporation).

B. Logo

The logo of the corporation shall consist of a star of life over which the word "Shirley" is superimposed, as pictured in Appendix "A" attached hereto and made a part thereof.

The lettering which is superimposed upon the star of life shall always be written in the following manner:

1. The letter "R" shall be largest letter and shall measure two-thirds the height of the star of life.
2. The "I" and "L" shall be of equal size but smaller than the "R".
3. The "H" and "E" shall be of equal size but smaller than the "I" and "L".
4. The "S" and "Y" shall be of equal size but smaller than the "H" and "E".

C. Patch

The patch of the corporation shall be described below and as pictured in Appendix “B”, attached hereto and made part hereof.

1. It shall generally be triangular in shape, with three curved sides, two sides of equal length, and one side shorter than the other two. The shorter side shall be the top of the patch
2. The overall length of the patch shall be four to five inches, and it shall be three to four inches wide at its widest part.
3. The patch shall be white with a dark blue outside border. The word “Shirley” shall be printed in red across the top, “Community” shall be printed in red along the left edge, and “Ambulance” printed in red along the right edge. The logo shall be in the center of the patch. The letters “EMS” shall be under the logo in dark blue.

D. Colors

The colors of the corporation shall be blue and white.

Article II

Legal

A. Equal Employment Opportunity

The corporation shall, at all times ensure that it meets the United States Federal and the State of New York standards required of an equal opportunity employer.

B. Non-Discrimination

The corporation shall not, in any manner, take action that discriminates against a member of the corporation, a perspective member of the corporation, a vender/supplier, or member of the community due to race, gender, creed, religious beliefs, national origin, sexual orientation, or disability.

C. Gender

Whenever the context requires all words contained in these by-laws in the male gender, it shall be deemed to include the female gender or gender neutral. All singular shall include the plural, and all plural words shall include the singular.

D. Rights and Privileges

These by-laws do not apply to any career personnel, if any, and only afford the rights and privileges to volunteers.

E. Grandfather Clause

Current membership status for all members shall remain effect. Effective January 1, 2017, all members must comply with all the requirements as herein stated in these by-laws.

Article III

Objective

A. Purpose

The purpose of the corporation shall be to provide emergency ambulance and related services to sick, injured, and disabled persons without regard to sex, race, age, religion or national origin. The corporation Shall:

1. Acquire by means of purchases, gifts, contributions or bequests real and/or personal property.
2. Own, hold, operate and maintain said real and/or personal property for the purpose of enabling the corporation and members thereof to render the services specified herein upon such conditions as may be provided by these by-laws, and to dispose of such property subject to the provisions of the law and as consistent herein.
3. Do and perform all acts or things, which may be permitted by law, necessary and incidental to the proper fulfillment of the purpose of the corporation.

B. Mission Statement

The mission statement of the Shirley Community Ambulance Corporation shall read as follows:

The purpose of the Shirley Community Ambulance Co., Corp shall be the deliverance of the highest level of Emergency Medical Care necessary to all patients requiring our services. This shall be accomplished with the appropriately certified persons in the shortest possible period of time. Patient care comes first, everything else is secondary. Corps affiliation or personal feelings have no bearing in following our mission. Furthermore, we will act as leaders throughout our community by educating in the areas of community health, accident prevention, CPR, and all other related roles.

C. Service Area

The corporation shall provide the herein stated services principally in the area described in the meets and bounds of the Shirley Community Ambulance District. The corporation shall provide these services outside this area on a mutual-aid basis, if so requested by Med-Com, a neighboring district or if so directed by the Board of Directors.

D. Response

The corporation shall not respond to any request for service unless directed to do so by a physician, hospital, police officer, Med Com, the Suffolk County Department of Fire Rescue Emergency Services, Chief of the Fire Department, or any active member of the Corporation.

E. Misuse

The corporation reserves the right to refuse any request for services which are deemed to be misuse of an emergency vehicle, or in circumstances which pose abnormal physical danger to the property or members of the corporation.

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Article IV

Dissolution

A. Dissolution

Upon dissolution of the corporation, the Board of Directors shall, after paying or making provisions for the payments of all the liabilities of the corporation, dispose of all the assets of the corporation exclusively for the purposes of the corporation in such matter, or to such organizations organized and operated exclusively for religious, charitable, scientific, testing for public safety, literary or educational purposes or for the prevention of cruelty to children or animals as shall at the time qualify for exemption as an exempt organization under section 501 (c) (3) to the Internal Revenue Code of 1954.

Article V

By-Laws

A. Invalidation

If any term or provision of these by-laws or the application thereof to any person or circumstances shall, to any extent be held invalid or unenforceable, the remainder of these by-laws, or the application of such term or provision to persons or circumstances other than those as to which it is held invalid or unenforceable, shall be affected. Every other term and provision of these by-laws shall be valid and be enforced to the fullest extent permitted by law.

B. Amendment Process

1. Proposed amendments to the by-laws must be submitted in writing to the By-Laws Committee and signed by at least two (2) eligible voting members at a minimum of two (2) weeks prior to the meeting the proposed amendment is to be read. This step provides the By-Law Committee sufficient amount of time to research and confirm any contradictions with other articles of these by-laws.

Proposed amendments shall be on original by-law amendment proposal form as shown in Appendix "C".

2. The By-Laws Committee shall furnish copies of the proposed amendments to all the voting members of the corporation.
3. Post a copy of the proposed amendments in a conspicuous place for at least sixty (60) days after being announce at the regular monthly membership meeting.
4. The By-Laws Committee and the proposing members shall read and explain the intent of the proposed amendment at two (2) consecutive monthly membership meetings.
5. The day of the proposed by-law amendment is to be voted on; copies will be made with a section for the purpose of voting on the proposed amendment.

Circle one: Yes No Abstention

6. This copy of the proposed amendment shall be given to each eligible voting member prior to the start of the regular monthly membership meeting.

7. After the By-Laws committee, has read the proposed amendment for the second and final time this copy shall be marked by the eligible voting members, then collected and counted by the By-Laws Committee.

This is the only way an amendment vote can take place and only those eligible voting members present for the regular monthly general membership meeting shall vote on said proposal.

C. Amendment Acceptance

The proposed amendment shall be voted by floor vote of two thirds (2/3) of the eligible voting membership and shall constitute the acceptance of the amendment. The results are to be made known and posted that night. A proposed amendment shall be effective immediately upon announcement of acceptance of said proposed amendment.

D. Changes to Amendments

Changes made to proposed amendments by the floor shall not affect the timing of the amendment process providing that the changes do not alter the material intent of the proposed amendment and shall again be subject to the entire amendment process.

E. Discussion of Amendments

Discussion of proposed amendments shall take place after the first reading limited to a reasonable amount of time. Time limit is to be determined by chairperson of the regular monthly membership meeting.

F. By-Laws Maintenance

These by-laws shall be reviewed annually by the By-Laws Committee to ensure that they are accurate.

The master copy of these by-laws shall remain on the premises of the corporation and shall be available to all members at reasonable times.

G. Distribution

Upon acceptance of a proposed by-law, each member shall receive a new copy of the revised by-law article. There will be a by-law acknowledgement form signed and dated by each member stating that they have received the revised by-law article.

Article VI

Uniform

A. Class A Uniform

The official corporation class A uniform shall be issued to all Active Voting Members. The dress uniform shall consist of:

1. Black Double Breasted coat.
2. Black dress uniform trousers for male members. Black dress uniform trousers, or skirt for female members.
3. White short-sleeve and/or long sleeve class A uniform shirt.
4. Black clip-on tie.
5. Black high gloss low quarter shoe.
6. Black garrison style belt.

The corporation patch shall be worn on the right sleeve three (3) inches below the shoulder seam, centered. The flag of the United States shall be worn on the left sleeve three (3) inches below the shoulder seam, centered.

Collar brass shall consist of cut out style letters, denoting the member's certification, shall be displayed on the left collar of jacket. Cut out cadeuses shall be worn on the right collar of jacket.

All members shall be issued an official breast badge of the corporation. Members shall also be issued a name plate with serving since plate attached below the name plate. Both shall be worn on the jacket.

Board of Directors and ex-chiefs' shall wear gold. All other members shall wear silver. Once a Board of Director leaves the board he/she has thirty (30) days from the day of leaving the board to have gold changed back to silver.

All uniforms shall be the same. Members may not add or take away from what is listed for the class A uniform. No personal pins, patches may be displayed on the uniform. Members are to wear class A uniform when authorized by the Board of Directors.

Black socks must be worn while in dress uniform.

B. Class B Uniform

Class B uniform shall be issued to all members. The class B uniform shall consist of:

1. Navy blue polo shirt.
2. BDU EMS pants.
3. Black uniform belt.
4. Black duty boots.

Black socks must be worn while in class B uniform.

Class B uniform may be worn at the member's discretion or when authorized by the Board of Directors.

C. Class C Uniform

The Class C uniform shall consist of:

1. Navy blue duty tee shirt.
2. BDU EMS pants.
3. Black uniform belt.
4. Black duty boots.

Class C uniform shall be considered the uniform of choice to wear when a member is on duty.

Article VII

Meetings

A. Regular Meeting

The regular monthly membership meeting shall be held on the second Thursday of each month at the corporation's headquarters at **7:30 p.m.** (1930hrs). The Board of Directors for cause, with notice may change the date, day or time of the regular monthly membership meeting.

B. Special Meetings

Special membership meetings may be called by one (1) of the following manners:

1. Board of Directors.
2. A majority vote of the floor.
3. At the written request of three (3) voting members.

Special meetings require one (1) weeks' notice to all voting members, and said notice must specify the business to be transacted and only the business specified may be transacted.

C. Quorum

A quorum for the transaction of business at any meeting of the membership shall be at least one half (1/2) of the active voting members of the Corporation.

Quorum shall be inclusive of all Acting Voting Members of the corporation, including all past presidents and Life Members that are excused from the regular monthly membership meetings.

Fifteen (15) minutes after a meeting has been called to order and there is not a quorum, no business may be transacted.

Votes may not be cast in absence of a quorum.

D. The Floor

The voting membership of the corporation, which constitutes a quorum, and is assembled for the transaction of business at any authorized meeting of the corporation shall be herein after, be referred to as the "Floor".

E. Roberts Rules

"Roberts Rules of Order" shall be followed at all regular monthly membership meetings.

F. Order of Business

The order of business at all regular monthly membership meetings shall be:

1. Pledge of Allegiance to the Flag.
2. Reading, correcting, approving and adopting of the minutes from the previous meeting.
3. Treasurer's report.
4. Presentation of correspondence.
5. Reports of the officers
6. Reports of the Membership Committee and proposal of new members.
7. Reports of emergency runs
8. Reports of committees
9. Unfinished business
10. New Business
11. Adjournment

G. Attendance

Attendance at each regular monthly membership meeting will be taken by means of an official sign-in sheet or electronic equivalent of the corporation, which must be signed by each member to obtain credit for attendance at the meeting.

H. Minutes

The Secretary of the corporation shall take minutes at each regular monthly membership meeting. The minutes of each regular monthly membership meeting shall be read, corrected and approved by the floor at the following regular monthly membership meeting. Once approved by the floor, the minutes shall be signed and dated by the President and Secretary and the seal of the corporation affixed thereto. The Secretary of the corporation shall maintain a chronological file of the minutes, and said file shall be available for inspection by any voting member at reasonable times.

I. Officer Attendance

Any officer, who is absent from three (3) successive meetings of the Board of Directors or regular monthly membership meetings of the corporation, shall be notified to appear at the next meeting of the Board of Directors and show cause why the officer should not be removed from office.

J. Exemption

All past Presidents (ex-chiefs)/ Life Members that are active members shall be excused from the regular monthly membership meetings.

Exceptions would be:

1. A past President/ Life Members who is currently holding office of the Corporation must first fulfill his obligations as an officer.
2. All meetings that are deemed mandatory as per the Board of Directors.

K. Cancellation of Regular Meeting

New (Adopted 7/13/2017)

In the event that the regular monthly membership meeting needs to be cancelled due to weather, national emergency or local state of emergency or for other unforeseen circumstances, the Board of Directors have the authority to cancel a meeting by a majority vote.

Members shall be notified of the cancellation of the regular monthly membership meeting by any means available to the chiefs at the time of cancellation (Ex. Email, phone calls, dispatch, texts, or social media).

Article VIII

Trainings

A. Training Attendance

It shall be the duty of each member to attend all trainings. Attendance at each training will be taken by means of an official sign-in sheet/ or electronic equivalent of the corporation, which must be signed by each member to obtain credit for attendance at the training.

B. Regular Training

Regular monthly training shall be posted annually or held on the fourth (4th) Thursday of each month at a predetermined time. The day and/or time are subject to change with at least one week's notice.

C. Mandatory Training

For a member to maintain their active riding status with the Corporation, any training that is deemed mandatory by the Board of Directors/ Training officer must be attended by the member. Make up trainings may not be substituted with any another training when said training is mandatory. The member must make up the training with the Training officer on that specific training.

D. Make-up Training

Should a member not make training, that member must contact the officer in charge of trainings, and make up the training.

Make up trainings must be made up within fourteen (14) days following the missed training, or the end of the current review period, whichever occurs first.

Extenuating circumstances in which the member is unable to make up the missed training within the given timeframe must be submitted in writing to the Board of Directors for review.

These actions are the responsibility of the member and not of the corporation.

E. Special Training

The training officer may call special trainings. The time and date of special training must be posted at the beginning of the month. Missed special trainings do not have to be made up unless the special training is posted as mandatory.

F. Exemptions

All past Presidents (ex-chiefs)/ Life Members that are active members shall be excused from all trainings.

Exceptions would be:

1. In-service training necessary to upgrade or maintain their level of certification and/or expertise.
2. Any training that has been deemed mandatory by the Training officer.
3. A past President/ Life Member who is currently holding office of the Corporation must fulfill his obligations as an officer.

Article IX

Budget

A. Budget Meetings

Prior to June of each year, the Board of Directors of the corporation shall prepare a proposed line item budget for the corporation for the ensuing year.

B. Budget Approval

On the third (3rd) Thursday of June, at 8:00 p.m. (2000) at the corporation headquarters, there shall be a special membership meeting for the purpose of reviewing the budget.

C. Quorum

In the event that there is not a quorum for this meeting, or should the meeting adjourn prior to the budget gaining approval, the proposed budget shall be deemed approved.

D. Notice

There shall be no notice required for this special meeting at this article herein shall constitute sufficient notice.

E. Budgetary Limitations

The Board of Directors shall authorize and make expenditures of the corporation's funds of amounts not to exceed each line item in the approved budget. The floor, providing the expenditures to date exceed the total of the approved budget, may authorize expenditures in excess of a line item amount. In no event, may the Board of Directors of the corporation authorize or make an expenditure of the corporation's funds that will cause the total expenditure to date to exceed the total approved budget.

F. Members Fund

The floor, with the approval of the Board of Directors may establish a separate members fund for expenditures not necessary for the day-to-day operation of the corporation. The revenues for said fund may not directly or indirectly come from a tax levy. Expenditures from the members' fund may be authorized by the floor, and are exempt from the budgetary process as described herein.

G. Financial Records

The President shall charge each expenditure made under the approved budget to the appropriate line item in the approved budget and provide the Board of Directors with a descending line item balance semi-annually.

H. Fiscal/Operating Year

The fiscal year of the corporation shall commence on the 1st day of January at 0000 Hours of each year and shall end on the 31st of December at 2359 Hours of the same year.

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Article X

Membership

A. Types of Membership

Membership in the Corporation shall be limited to the following classifications:

- | | |
|-------------------------|------------------------------|
| 1. Charter Member | 5. Youth Member |
| 2. Probationary Member | 6. Student Member |
| 3. Active Voting Member | 7. Honorary Member |
| 4. Life Member | 8. Clinical Associate Member |

B. Membership Application Process

For a prospective member to be eligible for membership of the corporation they must meet the following criteria:

1. Membership in the corporation shall be limited to persons eighteen (18) years of age and be out of high school inclusive for all active members and with no other age limits for any of the other classifications of membership.
2. All riding members are to be residents of either Suffolk or Nassau County.
3. All members must be mentally and physically fit to meet the qualifications set forth by the corporation and be of good moral character.
4. All perspective applications for membership in the corporation must be submitted to the Membership Committee on a form prescribed by the corporation and signed by the applicant.
5. Perspective members shall interview with the Membership Committee.
6. Perspective members shall have three reference letters submitted.
7. Have a physician's statement stating that a prospective member is physically fit for duty on prescribed physical form of the corporation.
8. All members of the corporation shall have a satisfactory criminal and/or driving background check.

After successful completion of the above criteria for membership, the prospective member shall be brought to the Board of Directors for review and vote. Upon gaining majority vote of the Board of Directors the prospective member shall be entered into the corporation as a probationary member and introduced at the next general monthly meeting.

Applications will be accepted on a continuous basis.

Each member in all classifications must keep on file, their current legal mailing address and telephone number with the Membership Committee. Changes of address and telephone number must be submitted in writing to the Membership Committee within thirty days after such change.

C. Physical Examinations

All applicants for membership shall be required from their physician certifying them to be physically sound and strong enough to withstand the type of strenuous activities involved in emergency ambulance services. Any active member may be required to submit such certification at the discretion of the Membership Committee. The applicant and/or member is responsible for the expense of acquiring the physician's certifications.

D. Charter Member

The corporation began its existence in February 17, 1978. All members who are actively participating in the corporation on February 17, 1979 are recognized as founding Charter Members, and are recognized and listed below:

Bridenhagen, Michael E.M.T.
Cafiero, Linda E.M.T.
Conti, Laure E.M.T.
Garvey, Arlene E.M.T.
Lillianthal, Stephen E.M.T.
Pfister, Henry E.M.T.
Rothenberger, William E.M.T.
Tuerlings, Robert E.M.T.

Cafiero, Joseph E.M.T.
Conti, John E.M.T.
Dutcher, Ronald E.M.T.
Garvey, John E.M.T.
Lillianthal, Judith E.M.T.
Pfister, Maryanne E.M.T.
Tamburino, Michelle E.M.T.
Vitale, Francis E.M.T.

E. Probationary Member

Upon being introduced as a Probationary Member of the corporation by the Membership Committee, the member must satisfy the following requirements:

1. The member must have or obtain a New York State Driver's License.
2. The member must have or obtain a New York State Emergency Medical Technician Certification.
3. The member must meet the minimum qualifications in such operational areas deemed necessary by the Board of Directors, providing said minimum qualifications are applicable to all membership classifications.
4. All probationary members must meet the above mentioned requirements within one (1) year from being accepted into the corporation by the Board of Directors.
5. Probationary members who enter into the corporation who meet requirements one (1) and two (2) above must still meet requirement three (3). These members may apply for Active Voting Member within three (3) months as long as they satisfied requirements as described above.

Failure to meet the above requirements will result in the probationary member being dropped from the roster of the corporation. The member may re-apply when he feels he can meet the requirements of a probationary member.

The member may not be dropped from the roster of the corporation as long as he makes a good faith effort, as deemed by the Board of Directors.

F. Active Voting Member

Applicants for Active Voting Member must complete all of the probationary requirements before being eligible to become an Active Voting Member. After successfully completing all of the probationary requirements, applicant for active voting membership must be accepted as an Active Voting Member by a majority vote of the floor. This vote is to be carried out by secret ballot. Applicants not accepted may re-apply for membership. Applicants who are accepted shall be an Active Voting Member immediately and partake of all rights of membership.

In order to be eligible to vote, a member must be an Active Voting Member and in good standing with the corporation.

Any Active Voting Member who allows their New York State Emergency Medical Technician certification to lapse shall automatically be placed on probationary status for a period not to exceed six (6) months. During this six (6) month period the member must make every effort regain said certification as long as a certification class is available or be dropped from the membership.

G. Life Member

Any member after serving ten (10) years shall be a Life Member. Any other member may upon written application by two Active Voting Members other than the applicant and with a unanimous vote of the membership at the regular monthly membership meeting following the submission of the proposal, become a Life Member.

Presidents, after serving one (1) full year as Chief, may become a Life Member.

Life Members have the right to serve on appointed committees and attend all functions.

Life Members who wish to maintain their Active Voting Membership must adhere to all provisions covering eligibility for active voting membership

Life Membership shall be awarded to any member who gives ten (10) years of riding time to the corporation of Shirley Community Ambulance in the following manners:

1. **Student time:** For every one (1) full year of active riding time, a student will receive one half (1/2) of a year towards life membership.
2. **Probationary:** Every one (1) full year of riding time as a probationary member, one (1) year towards life membership will be awarded.
3. **Voting Membership:** Every one (1) year of full active riding time, one (1) year towards life membership will be awarded.

The status of a Life Member shall consist of the following:

a) Non-Voting Life Member

Life Members may participate in the deliverance of emergency medical care under policies and procedures promulgated by the Board of Directors. Any Life Member wishing to do so will be dealt with on a case by case basis.

To qualify for this a Life Member must volunteer at least six (6) hours per month.

b) Active Life Member

Active Life members are Life Members who wish to maintain their right to vote at regular monthly membership meetings and the annual election.

To do so these Life Members may perform their monthly required twenty-four (24) hours of duty at any time during a monthly calendar with prior notification when scheduling is due.

c) Prestigious Life Member

Prestigious Life member shall be defined as a member of the corporation who has obtained twenty (20) year of active service.

A Prestigious Life Member does not have to actively ride the ambulance, but has the option to ride as long as this member remains compliant with the annual qualification procedures as determined by the Board of Directors.

Prestigious Life Members may participate in monthly trainings, but are not required. The only exception to attending monthly trainings are trainings that are deemed mandatory.

A Prestigious Life member shall have the right to vote at regular monthly membership meetings and annual elections providing that this member has attended six (6) of the previous twelve (12) regular monthly membership meetings.

H. Youth Member

1. Must be a student in the William Floyd or Longwood School Districts and be at least fourteen (14) years old but not have reached their sixteenth (16th) birthday.
2. Upon written application on their sixteenth (16th) birthday, providing they are students in the William Floyd or Longwood School Districts may become a student member.
3. The youth member application must be signed by a parent or guardian and contain a physician's physical report declaring the youth physically fit.
4. The purpose of this membership classification shall be to train the youth member in CPR, first aid, involve them in first aid competitions, parades, and special functions and provide training in emergency medical care. However, the

youth member will never be involved in the deliverance of emergency medical care on the ambulance.

I. Student Member

All applicants for student trainee membership must:

1. Be a high school student and be at least sixteen (16) years of age.
2. Have the written approval of the high school principal, parent or guardian, and ambulance chief, and be declared physically fit by the organization's medical advisor.
3. All applications will be processed according to the Membership Article, section B.
4. Student Member applications must be processed through the Membership Committee. The Membership Committee shall announce the applicants name at the next regular monthly membership meeting and the applicant shall then become a student trainee member. The Board of Directors shall set a maximum number of students permitted in the program at one time.
5. Students may attend regular monthly membership meetings. Student trainees are required to attend 50% of all training sessions as set forth by the Board of Directors. The Student trainee is required to complete a CPR course and First-Aid course by the ambulance company and abide by all rules and regulations of the corporation.
6. Student Members may not operate any motor vehicle owned by the corporation.
7. The applicant must meet any minimum qualifications in such operational areas as determined by the Board of Directors.
8. A student member may move up to a Probationary Member upon reaching their eighteenth (18th) birthday and High School graduation or GED equivalent.
9. Students may be on duty between the hours of 7am (0700) and 9pm (2100) on school days, and the hours of 7am (0700) and 10pm (2200) on Fridays, Saturdays, and holidays. If a student is supposed to be in school, they may not be on the property, except in emergency situations at the discretion of an officer.

10. If the high school principal, parent, or guardian, or the ambulance chief notifies the Membership Committee that the student should no longer be a member of the program, the student shall automatically be dropped from the program.

J. Honorary Members

Any person who has made an unusually significant contribution to the work of the corporation, but is not a member as defined elsewhere in this article, may be elected to Honorary Membership by a majority vote of the floor. An appropriate certification or plaque shall be presented to the person or persons elected. Honorary Members shall remain in non-voting status, but shall be allowed to participate in the social activities of the corporation.

K. Clinical Associate Member

1. A person applying for this type of membership must follow the same application process as an applicant for Probationary membership. The intent of this By-Law is to make more persons eligible for membership that cannot fulfill the requirements demanded of an Active Voting Member, but at the same time this type of member is not eligible for the benefits provided to an Active Voting Member.
2. An applicant for this type of membership must be and maintain throughout their membership with Shirley Community Ambulance, New York State Department of Health certification or licensure as an EMT, EMT-I, EMT-CC, EMT-P, Medical Doctor. They must also maintain their New York State Driver's License.
3. This member must volunteer at least twelve (12) hours per month actively riding the ambulance and be listed for a time slot on the monthly duty schedule.
4. This member will ride when there is open availability on the monthly duty schedule as determined by the Board of Director in charge of scheduling. This member must sign up for the schedule no later than the twentieth (20th) of the month preceding the month they will be riding. They must ride either ride two (2) six (6) - hour slots or one (1) twelve (12) - hour time slot. This must be within the normal six (6) -hour duty slots as listed on the duty schedule. Example: 0600-1200 or 1200-1800.
5. This member may be removed from a duty shift at the discretion of the Board of Director in charge of scheduling, as Probationary, Active, and Life Members take precedence for duty shifts

6. This member does not have to attend meetings, trainings, or parades except for trainings that have been deemed mandatory as per the training officer, or Board of Directors.
7. This member shall not be eligible for any benefits afforded Probationary or Active members except that they will be invited to the Annual Dinner, picnic, and Christmas Party provided they participate in fund raising activities. This type of membership does not count towards life membership plus this membership cannot vote or hold office.
8. This type of membership shall be held to the same standards as all members and may be removed as a member or expelled on a majority of the Board of Directors.
9. This member may take a leave of absence using the same methodology as is outlined in these by-laws except they may not receive a total combined leave time of six months during their entire tenure of their membership.
10. After serving a six (6) month probationary period, applicants for Clinical Associate Membership must be accepted by a majority vote of the floor. This vote must be carried out by secret ballot.
11. This member may change to an Active Voting Member if they have completed the probationary requirements. This will include the ninety (90) days. Clinical Associated Members will be given thirty (30) days toward the ninety (90) for every one hundred twenty (120) days of service as a Clinical Associate Member. Clinical Associate Member time can only count toward the probationary ninety (90) days and not for any other service credit.

12. (Amended 10/4/2018)

Clinical Associate Members may move to Active Voting Membership status with notice to the Membership Committee. A Clinical Associate Member must have had no previous membership changes in the previous three (3) months. Once they have changed their status to an Active Voting Member, they must remain there for a minimum of six (6) months before they are eligible to return to Clinical Associate Member status. The member may move back to an Active Voting member at any point during the year, however, said member will be unable to vote until one of the following dates:

January 1st, May 1st, August 1st, whichever occurs soonest.

L. Transfer of Membership

Membership in the corporation is non-transferrable from outside agencies.

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Article XI

Termination of Membership

A. Resignations

Any member who wishes to resign should do so in writing to the Membership Committee. All debts to the corporation are to be paid and any property of the corporation must be returned in good condition. The Membership Committee will acknowledge all resignations in writing for the corporation.

The floor shall be notified of all resignations at the next regular general membership meeting.

B. Honorable Discharge

All members who resign shall be considered “Honorably Discharged” from the corporation unless there are circumstances to the contrary.

C. Dishonorable Discharge

If a member is not “Honorably Discharged” the Membership Committee will make a recommendation to the floor, and upon majority approval of the floor, the Membership Committee shall indicate the same in the members personal file.

D. Expulsions

Members who are expelled from the corporation shall be considered “Dishonorably Discharged”.

E. Being Dropped from the Roles

When a member is dropped from the corporation due to a combination of missed calls and/or failing review to rejoin the corporation the following must be met:

1. There must be a six (6) month interval between being dropped and reapplying (two (2) review periods).
2. The application must be filled out and the application process must be completed (interview, medical, and background check).

3. A review of the previous file must precede the interview and on the new application the reason for being dropped must be clearly stated.
4. The applicant will be advised of the following conditions to rejoin the Corporation:
 - a. The probationary period will be extended to one hundred eighty (180) days (six (6) months).
 - b. Within that time period the applicant will follow the regulations of a three (3) month probationary period. (Example: No changing of riding hours for the six (6) month period), consideration will be taken into account for a rotating work schedules and academic schedules.
 - c. If the applicant fails to follow the above conditions consideration by the Membership Committee will be given to drop the probationary member.
 - d. If the probationary member is dropped from the corporation due to not satisfying the above regulations, no consideration will be given to the applicant if he/she re-applies within one (1) year.

Article XII

Leaves of Absence

A. Leave of Absence

Leaves of absence may be granted to any member who is unable to actively participate in all required aspects of their membership duties for a specified period of time and who is an Active Voting Member, unless otherwise noted. Leave of absence requests must be submitted in writing to the Membership Committee unless the member is physically unable to do so. In such case a verbal request is sufficient.

Should a member on leave allow a certification to lapse; they must regain a certification as soon as reasonably possible.

Upon returning from a leave the member shall assume the same membership status as when their leave began, providing that their certification has not lapsed.

When a member's certification lapses while on a leave, the member shall be reclassified as a probationary member and must satisfy the requirements under the Article of Membership, section F, Active Voting Member, paragraph 3.

Voting members while on a leave forfeit their right to vote at the monthly membership meetings or the annual election, unless they were injured in the line of duty. While on a leave, as herein described, the member is excused from all activities of the corporation.

While on a leave a member may not ride the ambulance, unless otherwise stated.

B. Types of Leave

1. Medical Leave
2. Personal/ Hardship Leave
3. Military Leave
4. Student Leave
5. Maternity/Paternity Leave
6. Line of Duty Injury Leave
7. Bereavement Leave

C. Medical Leave

Members who are on medical leave of absence for medical reasons may be granted a medical leave without floor vote. A medical leave of absence may not be granted for a period in excess of six (6) months. Once a leave of absence time is up, it is the member's responsibility to follow through and know their leave is up. It is not the responsibility of the corporation. Medical leaves may be extended for an additional six (6) month increment upon written request and a majority vote of the floor.

Probationary members in good standing may take a medical leave if needed. Leaves of absence may not be granted for a period in excess of three (3) months. After a leave of absence time is up it is the member's responsibility to follow through and know their leave is up. It is not the responsibility of the corporation. Leaves may be extended for an additional three (3) month increment upon written request and a majority vote of the floor.

Members ready to return from a medical leave must obtain a physician's letter documenting his disability and must receive a physician's approval to return to full active duty.

Should a member be out due to a medical reason, the member must take a medical leave if they will be out for six (6) weeks or more from the time of disability. This will also take effect at the moment of being out for six (6) weeks for an injury or illness that was not expected to last over six (6) weeks.

While on a Medical Leave the member does not accrue time towards life status.

D. Personal/ Hardship Leave

Personal/ Hardship leaves of absence may not be granted for a period in excess of six (6) months. After a leave of absence time is up it is the member's responsibility to follow through and know their leave is up. It is not the responsibility of the corporation. Personal/ Hardship leaves may be extended for one (1) additional six (6) month increment upon written request and a majority vote of the floor.

While on a Personal/ Hardship Leave the member does not accrue time towards life status.

E. Military Leave

Leaves of absence may be granted to any member who is serving in the United States Armed Forces. Leave of absence requests must be in writing, including copy of the member's military orders, and submitted to the Membership Committee.

Military Leave does not accrue towards life membership, with the following exception; should a member be drafted, their time shall accrue towards life membership for a maximum total time of two (2) years.

F. Student Leave

Student Leave of absence may be granted to any member who is attending an accredited program. The member must submit a copy of their syllabus to the Membership Committee along with their intent of leave. A Student Leave shall remain in effect for the duration of the semester for which the syllabus was submitted. Each new semester an updated syllabus shall be submitted to remain on Student Leave.

Members on Student Leave may ride the ambulance when they have availability. There is no commitment to a riding schedule or requirement to attend meetings and/or trainings. Said member shall not be eligible to vote while on a Student leave.

While on Student Leave a member does not accrue time towards life status.

G. Maternity/ Paternity Leave

Maternity/ Paternity leave shall be afforded to the member for the birth and care of a member's child. Members on Maternity/ Paternity Leave shall be granted leave without floor vote.

The first twelve (12) weeks of a Maternity/ Paternity Leave shall accrue towards life membership. All time after twelve (12) weeks shall not accrue towards life status.

H. Line of Duty Injury Leave

Line of Duty Leave of absence is for a member who has been injured while in the line of duty. This member may be granted a medical leave without floor vote. A Line of Duty Leave of absence may be granted immediately by the Board of Directors with notification to the Membership Committee.

While on a Line of Duty Injury Leave of absence it is the member's responsibility to follow through and keep the Membership Committee informed about the status of their

leave. Documentation from the providing physician must be submitted every six (6) months to maintain their leave of absence. It is not the responsibility of the corporation to follow up and request this documentation.

Members ready to return from a Line of Duty Injury leave must obtain a physician's statement approving the member's ability to return to full active duty.

Line of Duty Injury leaves accrue time towards life membership for a maximum total time of two (2) years.

I. Bereavement Leave

Bereavement Leave shall be granted to a member of the corporation for the ability to pay their proper respects in the unfortunate death of an immediate family member. Immediate family member shall be defined as spouse, children/ dependents, parents, grandparents, siblings, in-laws.

Bereavement Leave shall not exceed seven (7) calendar days.

Bereavement Leave shall accrue towards Life Membership. Bereavement Leave shall not be considered a break in service with the corporation.

J. Non-Compliance

Members who are non-compliant with the notification process as outlined in this article shall be subject for removal from the roles of the corporation. The Membership Committee shall notify the Board of Directors at the next Board of Directors meeting. Majority vote of the Board of Directors shall constitute the removal of a member from the roles of the Corporation. The Membership Committee shall notify the floor at the next regular monthly membership meeting the Board of Directors decision.

Article XIII

Board of Directors

A. Board of Directors

The Board of Directors of the corporation shall be comprised of the officers of the corporation, in which Board of Directors shall be vested in the management of the corporation.

B. Duty and Authority of the Board of Directors

The corporation Board of Directors has the duty and the authority to do the following:

1. To ensure that the general interests and property of the corporation are maintained in the best interest of the corporation.
2. Audit the financial records of the preceding year of the corporation upon completion of the annual audit by a certified public accountant, receipt of statements from the accountant and all law compliant filings (IRS, Town, etc.). Paperwork must be filled out no later than June 1st of the preceding year.
3. Determine policy of the corporation and for the corporation.
4. Make and maintain the rules and regulations for the corporation.
5. Authorize all routine operating expenses within the prescribed budget limitations such as but not limited to gasoline, repairs, printing, postage, salaries, and necessary supplies. The President and Treasure shall approve all routine and normal expenditures.
6. Prepare and submit a proposed budget for the calendar year to the floor for approval at the annual budget meeting as defined in Article of Budget.
7. Establish minimum qualifications procedures for the examination and certification of the members of the corporation in such operational areas as determined appropriate by the Board of Directors.
8. Question the mental, medical and physical status of a member with written documentation, and upon determination, the Board of Directors will forward their findings to the Membership Committee for a final investigation.

8. May establish up to three (3) appointed positions to assist the Board of Directors with business of the corporation.
9. The president shall vote if there is a tie vote.

C. Quorum

A quorum for the transaction of business at any meeting of the Board of Directors shall be three (3) Directors.

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Article XIV

Officers and Eligibility

A. Officers

The officers of the Corporation shall be:

1. Chief, who may also be known as the President.
2. First Assistant Chief, who may also be known as the First Vice President.
3. Second Assistant Chief, who may also be known as the Second Vice President.
4. Secretary
5. Treasurer

The Chief, First Assistant Chief, and Second Assistant Chief shall be the operational officers of the Corporation.

The Secretary and Treasurer shall be non-operational officers of the Corporation, unless specifically designated by the Chief. This designation shall be on a case by case basis.

B. Eligibility

To be eligible to be an officer in the corporation a member must:

1. Be an Active Voting Member of the corporation and in good standing with the corporation.
2. Has been an Active Voting Member of the Corporation for at least one (1) continuous year prior to and up to the date of the election.
3. Be a New York State Emergency Medical Technician and maintain this certification.
4. **(Amended 10/4/2018)**

Having held a previous position as a Board of Director for a minimum of three (3) years combined, with a minimum of one (1) year served as 1st Vice President is a requirement for the office of President

5. Member must be twenty-one (21) years of age or older to run for any elected position.
6. A person can only hold the elected position of Chief for two consecutive terms of election.
7. A member running for the position of Secretary must be able to read and write the English language.
8. A member running for the position of Chief/ President, Treasure, or a position that could be handling finances of the organization, must be able to be bonded by our insurance company as required and have no prior arrest convictions in areas that would compromise this position such as burglary, robbery, embezzlement, racketeering, fraud, grand theft etc.

C. Loss of Eligibility

The position of an officer shall immediately and automatically become vacant and a special election held to refill the vacant position of any officer who:

1. Loses their good standing in the corporation.
2. Allows their New York State Emergency Medical Technician certification to expire and fails to renew certification within ninety (90) days of the expiration date providing a course for the renewal of said certification is available in Suffolk County within a reasonable time prior to the expiration of the certification or during the aforesaid ninety (90) days. In the event that the above described course was not offered, the officer shall enroll in the first said course offered in Suffolk County. In no event shall waiting for the results of such course to be published have any bearing on an officer's status
3. Fails to attend at least 75% of the meetings of the Board of Directors.

D. Recall from an Elected Position

The voting membership of the corporation has the right to recall any member from an elected position of which they were elected them. The right to recall shall not be impaired by any other provision contained herein, or by the type, term, or remainder of the term of the elected position from which the recall is to be made. The desire to recall must be evident and accomplished in the following manner:

A petition signed by two-thirds (2/3) of the voting membership of the corporation must be filed with the Board of Directors of the corporation, under this provision, notice of this special election shall follow the Elections Article, section C of these By-Laws.

E. Officers Positions

Any one member may hold only one officer's position at one time.

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Article XV

Duties and Authorities

A. Duties of the President

It shall be the duties of the President to:

1. Preside at all the membership meetings of the corporation.
2. Maintain operational authority over the corporation and officers at all times.
3. Call special membership meetings whenever he may deem necessary or at the written request of three (3) Active Voting Members in good standing with the corporation.
4. Impartially enforce the by-laws and policy of the corporation and forward any recommendations for disciplinary actions to the Membership Committee.
5. Suspend or not suspend any member for causes and forward the appropriate details to the Membership Committee.
6. The President of the corporation shall appoint all committees, at the regular monthly membership meeting in January of each year.
7. Refers all purchasing requests received to the Board of Directors.

B. Authority of the President

It shall be the authority of the President to:

1. Authorize emergency and routine expenditures within budgetary constraints specified in this Article, Duties and Authorities, section A, Duties of the President, number 7.
2. Appoint all committees, except Membership Committee.

C. Duties of the First Vice President

It shall the duty and authority of the First Vice President to:

1. Have and discharge the duties and authority of the President in the absence of the President.
2. Aids the President in the discharge of the duties of President and at the direction of the President perform those duties which may or may not be specified herein but which are necessary to the operation of the corporation.
3. Train all new members in the use of the ambulance and all equipment.
4. Coordinate regular training programs for the members of the corporation.
5. Keep the membership advised and coordinate the enrollments in any on-going training courses.
6. Maintain all medical and communications equipment and supplies in adequate quantities and in good working order.
7. Maintain the physical condition of all the corporation vehicles and keep same in a safe and operable condition.
8. Examine, test and certify member's abilities to meet minimum qualifications in such operational areas as prescribed by the Board of Directors.

Duties of the 1st Vice President and 2nd Vice President may be interchanged by the Board of Directors depending on individual capabilities.

D. Duties of the Second Vice President

It shall be the duties and authority of the Second Vice President to:

1. Have and discharge the duties and authorities of the President and or First Vice President in the absence of the President and First Vice President.
2. Aids the President in the discharge of the duties of the President and at the direction of the President perform those duties, which may or may not be specified herein but are necessary to the operation of the corporation.
3. Prepare, distribute, maintain and coordinate any and all schedules for duty crews, work details, drills, events of the corporation and other related administrative duties necessary to the wellbeing of the corporation.

4. Prepare monthly, quarterly and annual reports on emergency runs and events of the corporation and report the same to the membership and Board of Directors of the corporation.
5. Perform any and all necessary administrative activities necessary for the wellbeing of the corporation.

Duties of the 1st Vice President and 2nd Vice President may be interchanged by the Board of Directors depending on individual capabilities.

E. Duties of the Secretary

It shall be the duties and authority of the Secretary to:

1. Take and keep the minutes of all membership meetings of the corporation and meetings of the Board of Directors.
2. Leave notices at the direction of the President or the Board of Directors for all special membership meetings.
3. Conduct any and all correspondence in relation to the transaction of the corporation and operational business.
4. Maintain files relating to correspondence, notices, books, and other materials relating to the corporation, except those records pertaining to the corporation fund, Treasurer, or Membership Committee.

F. Duties of the Company Treasurer

It shall be the duties and authority of the Treasurer to:

1. Maintain a correct account of all monies received and expended by the corporation in the member's savings and checking accounts.
2. Pay with the corporation's funds from above accounts all bills audited and approved by the floor.
3. Render a statement of the accounts at each monthly meeting.
4. Coordinate and oversee all fund raising activities of the corporation.
5. Maintain a file of all the financial records in the member's savings and checking accounts.

6. No later than January 15th of each year turn these financial records over to the President for use in incorporating them into the previous year's financial statements. It is always the responsibility of the incumbent treasurer to finish these records no matter if they continue in office or not.
7. Administrate all district money accounts receivable and accounts payable in conjunction with the President. This shall be done with the President as the primary signer and the Treasure being he co-signer of all checks disbursed.

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Article XVI

Membership Committee

A. The Membership Committee

The Membership Committee shall be an autonomous committee of three (3) Active Voting Members in good standing, elected at the annual membership meeting of the corporation. A member of the Membership Committee may not hold another elected position while a member of said committee.

B. Eligibility

To be eligible as a member of the Membership Committee, a member must:

1. Be an Active Voting Member of the corporation and in good standing with the corporation.
2. Has been an Active Voting Member of the corporation for at least one (1) continuous year prior to and up to the date of the election.

C. Loss of Eligibility for Membership Committee

The positions of any member on the Membership Committee shall immediately and automatically become vacant and a special election held to refill the vacant position of any committee member who:

1. Loses their good standing in the corporation.
2. Allows their New York State Emergency Medical Technician certification to expire and fails to renew certification within ninety (90) days of the expiration date providing a course for the renewal of said certification is available in Suffolk County within a reasonable time prior to the expiration of the certification or during the aforesaid ninety (90) days. In the event that the above described course was not offered, the officer shall enroll in the first said course offered in Suffolk County. In no event shall waiting for the results of such course to be published have any bearing on this committee member's status

D. Duties of the Membership Committee

It shall be the duty and authority of the Membership Committee to:

1. Interview all applicants for all classifications of membership and present all applicants to the floor for a vote by the floor.
2. Provide all new applicants with copies of the by-laws, policies, rules and regulations of the corporation, and ascertain the applicant's knowledge and understanding thereof.
3. Develop, run, and coordinate all membership drives.
4. Take and maintain a written record of attendance for all regular monthly membership meetings and other mandatory activities of the corporation.
5. Quarterly review the standings of the membership and classify those members not in good standing
6. Advise the Board of Directors of the status of all members and any changes thereof.
7. Initiate and/or investigate all charges against any member, whose actions or inactions are detrimental toward the corporation, members of the community, or themselves.
8. Conduct all hearings for misconduct, negligence, or any members standing or relation to or with the corporation.
9. Maintain personnel files on all members of the corporation.
10. Maintain a written detailed report of all such hearings and investigations.
11. Evaluate the fitness of all members and limit their activities as deemed appropriate to safeguard the interests of the corporation. The Membership Committee may, with the approval of the Board of Directors, accept a written waiver of liability in lieu of any limit on member's activities. Such limitations may be also lifted by a majority vote of the floor and the approval of the Board of Directors.

It shall be the duty of the chairperson to oversee all membership functions and Membership Committee meetings. The chairperson shall be determined by a vote of the Membership Committee. If they are deadlocked, it will be determined by the Board of Directors vote. The Membership Committee shall meet formally once a month prior to the general membership meeting of the corporation.

E. Limitations

The Membership Committee may not take any action against an officer of the Corporation without the express consent of the Board of Directors.

F. Membership Reviews

The Membership Committee shall review and classify the standings of the membership four (4) times a year:

December 1st thru February 28th inclusive
March 1st thru May 31st inclusive
June 1st thru August 31st inclusive
September 1st thru November 30th inclusive

The results of these reviews shall be reported to the membership (pass or fail notification only) at the regular monthly membership meeting following each review as well as individual notifications by certified mail.

Article XVII

Standing

A. Good Standing

In order to remain in good standing with the Corporation, members must:

1. Be available for duty twelve (12) hours per week or provide coverage for duty time under the present policy.
2. Attend a minimum of two-thirds (2/3) of trainings and attend all trainings declared mandatory by the Board of Directors.
3. Attend a minimum of two-thirds (2/3) of the regular monthly membership meetings.
4. Show reasonable activity in responding to ambulance calls.

Exceptions: Ex-Presidents (Ex-chiefs) and Life Members may perform their monthly required twenty-four (24) hours of duty at any time during a monthly calendar with prior notification when scheduling is due.

Life members and Ex-presidents who hold a position on the Board of Directors must be available for twelve (12) hours per week under present policy

B. Excuses

Any member who fails to attend a mandatory activity of the corporation must file an excuse within thirty days of the missed activity with the Membership Committee to receive credit for the activity. The Board of Directors must approve all excuses. Correct form as shown in Appendix "D", provided by the Corporation must be used.

C. Loss of Good Standing

Any member who has lost their good standing with the corporation shall have until the time of the next membership review to regain their good standing. In the event that the member fails to regain their good standing at the next membership review, the member shall be automatically dropped from the membership of the corporation.

Article XVIII

Disciplinary Actions

A. Disciplinary Actions

Any member who is guilty of gross misconduct as a citizen, a criminal offense, or whose actions or inactions are detrimental toward the corporation, members of the community, or himself, shall be liable for disciplinary action from the corporation.

Disciplinary Actions can involve any of the following:

1. Documented Verbal Warning
2. Written warning
3. Suspension
4. Expulsion

Disciplinary matters may be handled by the President, First Vice President, Second Vice President.

Disciplinary actions may start at any of the actions mentioned above at the discretion of any of the Presidents/ Membership Committee handing down the discipline

Once charges are filed, the Membership Committee shall handle any disciplinary matters as described in the Disciplinary Article, section C.

B. Power of the Board

In the event that charges are filed against a member of the Membership Committee, or a position on the Membership Committee is vacant when charges are filed, said charges shall be filed with the Board of Directors.

Upon receipt of said charges the Board of Directors shall appoint an executive committee comprised of Active Voting Members of the Corporation to assume the responsibilities of the Membership Committee for the duration of the specific case.

C. Charges

Charges against a member must be made in writing within seven (7) days of the incident's occurrence and filed with the Membership Committee who will immediately furnish a copy of it to the Chief/ President.

The Membership Committee will inform the accused of the charges via Certified Mail with a return Receipt with in seven (7) business days of the written receipt of the charges.

In the event that the certified letter is unclaimed and returned by the Post Office to the corporation, it shall be assumed that the charges have merit and the accused shall automatically be suspended pending the final determination of the Membership Committee.

D. Suspensions

A member suspended for specific period of time shall be automatically reinstated at the expiration of the specified time. Suspensions made by the Membership Committee are final unless the member makes a written appeal within ten (10) days to the Board of Directors.

All of the Chiefs have the authority to suspend any member of the corporation for actions that are detrimental to the corporation. The Chiefs shall notify the Membership Committee of the charges against the suspended member and the length of the suspension. The member shall be informed by the Membership Committee as outlined in the Disciplinary Actions Article, section C, Charges, paragraph 2.

E. Expulsions

A member that is expelled from the corporation shall not be permitted to rejoin the corporation.

Reason for expulsion from the Corporation:

1. A conviction of a felony involving violence or illegal sexual activity shall result in automatic discharge from the corporation.
2. Any member that has been suspended twice in a twelve (12) month period.
3. Any action of any member that is so detrimental to the corporation, it's members or themselves.

Expulsions made by the Membership Committee are final unless the member makes a written appeal within ten (10) days to the Board of Directors.

F. Hearings

All three (3) members of the Membership Committee must be present for any hearing. A two-thirds (2/3) vote of the Membership Committee shall be required for suspension, expulsion or dismissal of the charge.

The Membership Committee shall give the accused sufficient time to be heard, but not before one (1) week after receipt of the charges by the accused. The accused may appear with a legal representative, and any witnesses to present evidence and/or testimony on his behalf. The Membership Committee shall have sufficient notice, should the member elect to have legal representation.

The Secretary of the Corporation shall be present for the recording of the minutes of all hearing related inquiries of the Membership Committee. The Secretary shall not be eligible for a vote, nor shall the Secretary have a say in the proceedings of a hearing. In the event of the accused being the Secretary, an Active Voting Member shall be picked, by the Board of Directors, to serve as the Secretary for this specific case.

G. Appeals

A suspended or expelled member has the right to appeal the final determination of the Membership Committee, providing the appeal is made in writing to the Board of Directors within ten (10) days of the suspension or expulsion.

The Board of Directors shall review the case and present it and their recommendations thereof to the floor at the next regular monthly membership meeting, providing the Board of Directors has had three days to review the case. In the event the Board of Directors receives the appeal with less than three days before the next general monthly membership meeting, the Board of Directors will present the case and their recommendation thereof at the following regular membership meeting.

Appealed suspensions and expulsions must achieve a unanimous decision to overturn any decision of the Membership Committee.

H. Breach of Procedure

Any breach from the procedures specified in this Article shall result in the automatic and immediate dismissal of all charges, and the accused shall be protected from double jeopardy.

I. Missed Calls

Missing one call:

Verbal warning to the member will be instituted and documented by the Membership Committee.

Missing two calls:

Certified letter will be sent to the member by the Membership Committee notifying them of their second missed call.

Missing three calls:

A certified letter will be sent by the Membership Committee, via Board of Director approval, notifying the member of a thirty (30) day suspension or an option for an in house reprimand which will not exceed thirty (30) days (4 weeks X 18 hrs. a week).

If, during this thirty (30) day in house reprimand, the member misses a call for a reason decided by the Board of Directors as not valid the member will receive a thirty (30) day suspension as of the date of the last missed call.

If the member chooses not to take the in house reprimand option they will be suspended for thirty (30) days and will not be allowed on the property during the thirty (30) day suspension period. At the time of suspension, the Board of Directors will review the member's file up to one (1) year prior to determine if they are eligible to attend the next corporation function.

Article XIX

Nominations

A. Nominating Committee

The President shall appoint three members of the corporation to serve as a nominating committee. Appointment of the Nominating Committee shall take place at the regular monthly membership meeting held in October. The President shall when possible, appoint members to the Nominating Committee who are not seeking an elected position. The committee must include one active, riding-voting member.

B. Duties of the Nominating Committee

It shall be the duty and authority of the Nominating Committee to:

1. Elect a chairman of the committee.
2. Receive nominations for elected positions in a sealed envelope and verify the acceptance from the nominees on the evening of the regular monthly membership meeting.
3. Report the nominations to the floor at the regular monthly membership meeting.
4. Prepare the ballots for the elections.
5. Control every aspect of the elections.
6. Count the ballots, certify and post the names of all the elected officers who won the elections.
7. Prepare, administer and collect any absentee ballots.

C. Nominations

In order to be nominated for an elected position in the corporation, the candidate nominated must meet the qualifications for the position at the time of nomination, or show that they will meet said qualification at or by the time of the election.

Candidates who fail to meet said qualifications by the time of the elections shall have their name removed from the nomination by the Nominating Committee before the start of the elections.

Nomination period shall open on the second Thursday of October at the completion of the regular monthly membership meeting. In the event that a regular monthly membership meeting is not held, the nomination period shall open at 10pm (2200).

Nominations for an elected position in the corporation must be made in writing, signed by two active members in good standing, other than the nominee and filed with the Nominating Committee prior to 8 pm (2000) on the Tuesday before the November's general membership meeting. The nomination must be sealed in an envelope with a signature across the seal.

It is the responsibility of the two active members to notify the nominee to advise him that they have been nominated for an elected position. The nominee must either accept the nomination in person at the regular monthly membership meeting held on the second Thursday of November, or submit an acceptance letter to the Nominating Committee prior to 8pm (2000hrs) of the second Wednesday of November.

No person can accept a nomination for more than one position in the same election. If a person is nominated and this person has not accepted their nomination for any position either in person or writing, all nominations shall be disqualified.

Article XX

Elections

A. Annual Elections

The officers of the corporation shall be elected at the regular monthly membership meeting of the corporation held in December. Said meeting is to be held on the second Thursday of the month, unless otherwise changed by a two-thirds (2/3) vote of the voting membership.

B. Order of Balloting

Balloting at the annual election shall be done for the elected positions of the corporation in the following order:

President

First Vice President

Second Vice President

Secretary

Treasurer

The first position on the Membership Committee

The second position on the Membership Committee

The third position on the Membership Committee

C. Special Elections

Vacancies arising between annual elections shall be filled by nomination and election by the eligible voting membership at the next general monthly membership meeting, providing that the Secretary has notified the voting membership at least one (1) week immediately preceding the special election. The procedures defined in sections E through L of this article will be followed at all special elections, and Membership Committee serving in the place of the Nominating Committee.

D. Option to Leave Position Vacant

After September 1st, the floor shall have the right to leave a vacancy occurring between annual elections unfilled. However, if the floor exercises this right, the Board of Directors shall have the option to fill the position by appointment.

E. Polling Place

The Nominating Committee shall designate an area as a polling place. The polling place shall be closed to others than voting members. Other members must leave the polling place. The ballot box shall be located in the polling place. Electioneering shall not be permitted in or near the polling place.

F. Roll Call

The Nominating Committee shall secure from the Membership Committee a list of members who are eligible to vote in the annual election. The Nominating Committee shall read aloud the names of the eligible voting members at the beginning of elections and ascertain those eligible voting members who are present.

Once roll call is made, the meeting and elections shall be closed to those members present at the time of roll call. Roll call shall begin ten (10) minutes after the December meeting is adjourned.

No member/person shall enter or leave the voting place once the roll call begins.

G. Sergeant of Arms

The President of the corporation shall appoint Sergeant of Arms the evening of the election.

H. Balloting

Balloting shall be by secret ballot on the official ballot of the Corporation as shown in Appendix "E", on one ballot with all elected positions.

The candidate with the most votes wins the position.

In case of a tie, a runoff election will be done with the candidates who were tied. Write in ballots will not be accepted.

An inappropriate mark on a ballot for one or more positions does not invalidate the entire ballot, just the position where the invalid mark was made.

Ballots shall be kept in a sealed file for a period of not less than five (5) years.

I. Sign In

A sign in sheet shall be located next to the ballot box. Each member who casts a ballot must sign in for each ballot cast. The sign in sheet shall be verified to insure that the names on the sheet are eligible to vote and the total ballots cast for each position equals the number of names on the sign in sheet for that position.

Any inconsistencies between the sign in sheet, the names of eligible voters and the number of ballots cast shall nullify that round of balloting. Before a voting member casts their vote, they must sign the sign in sheet. Then the member shall enter a closed room to cast their vote.

J. Absentee Ballots

Absentee ballots must be on an official ballot from the Nominating Committee and sealed in an envelope, which must be signed by the member casting the ballot.

In the event that there is more than one (1) round of balloting for one (1) position, absentee ballots shall be counted in each round of balloting, providing the ballot is for a candidate whose name has not been eliminated from that round of balloting.

Absentee ballots shall be kept separately in a box away from the member's ballots that are present at the meeting to vote.

K. Proxies

Proxies shall not be permitted at the annual/ special elections.

L. Election of Unopposed Candidates

If a candidate for any position runs unopposed, he must receive at least fifty-one (51%) percent of the votes cast to be elected.

If the candidate fails to receive fifty-one (51%) percent of the votes cast, the position is to remain vacant until a special election is held at the next general monthly general membership meeting.

M. Installation of Officers

The formal installation of the newly elected officers shall be held at the annual installation of the corporation, which shall be held on or about February 17th unless otherwise changed by a two-thirds (2/3) vote of the voting membership.

N. Oath of Office

The following oath of office shall be administered to each newly elected officer at the formal installation by the chairman of the Membership Committee.

I do solemnly swear that I will faithfully and to the utmost of my abilities, execute the office of (name of office); and preserve, protect and defend the By-Laws of Shirley Community Ambulance Corp., and protect the community which it serve so help me God.

O. Transfer of Authority

The actual transfer of the duties and authority of office from the outgoing officer to the incoming officer shall occur at 00:01 hours on January 1st. The same transfer of duty and authority shall prevail for the Membership Committee.

P. Transitional Meeting

There shall be a transitional meeting between the outgoing Board of Directors and the incoming Board of Directors, and the outgoing Membership Committee and the incoming Membership Committee during the last week in December of each year.

Appendix A

Company Logo



Appendix B

Company Patch



Appendix C

Proposed By-Law Amendment:

Existing by-law;

Article # _____ Section # _____ Sub Section # _____ Paragraph # _____

Reads:

Change to read/ add:

Rationale of Proposal

Date Signed: _____ Date Submitted: _____ Date received by the Committee: _____

Submitted By: (1) _____ and (2) _____

Print (1) _____ and (2) _____

This proposed amendment will be read and discussed at the General Meeting on: _____

This proposed amendment will be read for the second time at the General Meeting on: _____

This proposed amendment would be voted on at the General Meeting on: _____

For Voting Purposes Only:

Circle One

YES

NO

ABSTAIN

PASS

FAIL

DATE _____

SHIRLEY COMMUNITY AMBULANCE

EXCUSE CHIT

PRINT MEMBER'S NAME

REQUESTS TO BE EXCUSED FROM:

☐ MEETING ☐ TRAINING ☐ DRILL

☐ OTHER _____

ON _____
ACTIVITY DATE

BY _____
MEMBER'S SIGNATURE

RECEIVED:

ON _____
DATE

BY _____
MEMBERSHIP COMMITTEE

☐ APPROVED ☐ DISAPPROVED

ON _____
DATE

BY _____
CHIEF

MEMBERSHIP COMMITTEE COPY

Appendix E

Sample Ballot

Instructions: Place an "X" next to the one candidate you choose.

President (Chief) Choose one

Candidate A _____ Candidate B _____ Abstain _____

First Vice President (First Assistant Chief) Choose one

Candidate A _____ Candidate B _____ Abstain _____

Second Vice President (Second Assistant Chief) Choose one

Candidate A _____ Candidate B _____ Abstain _____

Secretary Choose one

Candidate A _____ Candidate B _____ Abstain _____

Treasurer Choose one

Candidate A _____ Candidate B _____ Abstain _____

Membership Committee Choose three

Candidate A _____ Candidate B _____ Candidate C _____

Candidate D _____ Candidate E _____ Abstain _____